

## Employment Contract

Rakesh Kumar

Dear Rakesh Kumar,

Thank you for participating in our interview rounds. We are pleased to extend to you this offer of employment to join Third Wave Labs Private Limited (the "Company"), on the terms and conditions set out in this contract of employment ("Agreement").

**Engagement:** Your title shall be Operations Manager (Full-Time) and your date of joining and reporting date shall be on or before 14-August-2026 in Gurugram. You will be based in Gurugram and will be reporting to such person as may be indicated by the Company from time to time. During the tenure of your employment with the Company, you shall be required to work exclusively for the Company unless you obtain prior written consent from the Company. You agree to provide services exclusively to the Company and not to enter into any form of employment or contract with other organization.

**Salary:** So long as you remain actively employed by the Company, you will be eligible for the salary as prescribed in the attached Annexure A. Your salary less applicable deductions will be paid in accordance with the applicable laws of India. Your salary may change at the discretion of the Company, upon advance written notice to you. TDS, PF and ESIC or any other statutory liabilities (if any) falling within your salary structure shall be subject to mandatory employment deductions as per the statutory norms.

**Appraisals:** In the course of the employment and on an annual basis, depending upon your performance, the Company's performance and your contribution to the Company's growth, and other factors which may be taken into account by the Company, the Company may revise the Salary payable to you.

**Bonus:** You will also be eligible to be paid a discretionary bonus amount at the end of the relevant financial year. Such bonus amount(s) are determined at the Company's sole discretion. To be eligible you must be employed with the Company and must not have given or received notice of termination at the time the bonus awards are made. Entitlement to a bonus is not automatic and you acknowledge that you may receive a nil bonus.

**Probation:** You would be on probation for a period of 90 days following the commencement of employment. Your confirmation at the end of the probation period is subject to the discretion of the Company.

**Notice Period:** The notice period applicable during probation for all employees across all positions joining the Company is 1 month. The notice period after confirmation shall be 1 month or as the Company's compliance team will decide.

**Resignation:** If you resign from your position with the Company, you are required to provide written notice of resignation and serve a notice period as stipulated above.

**Termination:** The Company may elect (but shall not be obliged) to terminate your employment prior to the expiry of the notice period and make a payment in lieu of notice, unless your employment is terminated for "Cause", in which case the Company shall have the right to terminate your employment with immediate effect and with no requirement for notice period or payment in lieu thereof.

"Cause", as used herein, means:

1. your material neglect or material failure to perform your job duties and responsibilities,
2. your failure or refusal after due notice, to comply with lawful policies or directives of the Company or its designated official(s),
3. your material breach of any contract or agreement between you and the Company and/or your material breach of any statutory duty, fiduciary duty or any other obligation that you owe to the Company,
4. your commission of an act of fraud, theft, embezzlement or other criminal offence against the Company, or your engaging in unprofessional, unethical or other intentional acts that materially discredit the Company or are materially detrimental to the reputation, character or standing of the Company, or
5. your conviction with respect to any crime punishable under the laws of India.

Please note that employment is for no fixed term and either you or the Company may terminate the employment relationship at any time for any reason, in accordance with this Agreement.

**Full and Final Settlement:** The FNF settlement process takes up to 45 Days to be completed from the date of the employee's resignation.

**Non-solicitation:** You agree that during the term of your employment with the Company and for three (3) years after the cessation thereof, you will not, directly or indirectly, recruit, solicit, or induce, or attempt to recruit, solicit, or induce, any employee of the Company to cease their employment

relationship with the Company.

Conditions: Please note that this offer is conditional upon the following terms and may be withdrawn or rescinded without liability on our part should any or all of them not be met:

1. Background check, if conducted: Successful completion of a background check, as well as your satisfactorily meeting all pre-employment requirements. Provision of false or misleading information may be grounds for the withdrawal of this offer or, once your employment has begun, for disciplinary action against you including termination of employment.
2. Company Policies: Your agreement to comply with the Company's policies provided to you from time to time.
3. Work ethics: You shall ensure that any action or work is always carried out in the best interest of the Company and you shall strive to enhance its reputation, performance and goodwill.

Confidentiality: You will keep in strictest confidence all past and present discussions or correspondence(s) relating to your application and the resulting employment, this Agreement, as well as any information that you receive during the course of your employment with the Company. This obligation will survive termination of this Agreement and will remain in effect indefinitely.

Intellectual Property: The Company owns any intellectual property that may be created by you during the course of your employment and shall have all necessary rights to retain it.

Indemnification: You will indemnify and always keep indemnified the Company and its founders, directors and employees from all claims, costs, liabilities, obligations and consequences of whatsoever nature arising as a result of your misdeed, misconduct or negligence.

Dispute Resolution: The terms and conditions of this Agreement shall be governed and interpreted according to the laws of India. Any dispute arising out of or in connection with this Agreement shall be settled at the courts of New Delhi.

Entire Agreement: This Agreement constitutes the entire Agreement between the parties and supersedes any previous written or oral Agreement or understanding between them in relation to the matters dealt with in it.

Variations: No variations to this Agreement shall be valid unless they are authorized in writing by the Company.

Acceptance: To accept this offer of employment, you will need to print this offer letter, sign it on each page and provide us with an original signed version.

We are excited to have you as a part of the Company and wish you a long-standing association with us.

Sincerely,

Signature:

Name: Saurabh Pandey

Chief Executive Officer

Accepted by

Signature:

Rakesh Kumar

Date: 14/08/26

#### ANNEXURE A

Salary will be INR 50,000 per month (fixed), i.e. INR 6,00,000 per annum, payable monthly, subject to applicable statutory deductions.